

STATE OF NEW YORK

8059--A

2025-2026 Regular Sessions

IN ASSEMBLY

April 22, 2025

Introduced by M. of A. STERN -- read once and referred to the Committee on Governmental Employees -- recommitted to the Committee on Governmental Employees in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to authorize the widow of Luis Palermo to apply for World Trade Center related accidental death benefits from the New York state and local police and fire retirement system

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Notwithstanding any other provisions of law, the widow of
2 Luis Palermo, who was employed by the Nassau County police department
3 since October 14, 1994, and was a member of the New York state and local
4 police and fire retirement system for approximately 23 years, until his
5 passing on September 4, 2017, as a result of end stage pulmonary fibro-
6 sis contracted through his participation as a first responder, shall be
7 entitled to file a new application for an accidental and special acci-
8 dental death retirement benefit provided by the New York state and local
9 police and fire retirement system. Additionally, notwithstanding any
10 rule, regulation or law to the contrary, Luis Palermo's application for
11 World Trade Center notice shall be approved despite Officer Palermo
12 participating in rescue, recovery, and clean-up operations for twenty-
13 nine hours between September 11, 2001 and September 12, 2002. Such
14 application must be filed with the New York state and local police and
15 fire retirement system pursuant to section 361-a of the retirement and
16 social security law, as amended by chapter 733 of the laws of 1990,
17 within one year of the effective date of this act.

18 § 2. All costs associated with the implementation of this act shall be
19 borne by the county of Nassau and may be amortized over a period of ten
20 years.

21 § 3. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD03712-05-6

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would entitle the widow of Luis Palermo to file a new application for accidental and special accidental death benefits. It would also deem Luis Palermo's World Trade Center Notice approved.

There will be an immediate past service cost of \$6.25 million borne by Nassau county as a one-time payment. This cost assumes that payment will be made on February 1, 2027. If Nassau County elects to amortize this cost over 10 years, the cost for each year will be \$798,000.

Summary of relevant resources:

Membership data as of March 31, 2025 was used to measure the impact of the bill, the same data used in the Actuarial Valuations dated April 1, 2025. Distributions and other statistics can be found in the 2025 Report of the Actuary and the 2025 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2025 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The fair value of assets and GASB disclosures can be found in the 2025 Financial Statements and Supplementary Information.

Assumptions, demographics, and other considerations may have been modified to better reflect specific provisions of any proposed benefit change(s).

This fiscal note does not constitute a legal opinion on the viability of the bill, nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated April 8, 2026, and intended for use only during the 2026 Legislative Session, is Fiscal Note Number 2026-186. As Chief Actuary of the New York State and Local Retirement System (NYSLRS), I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member. I am a member of NYSLRS but do not believe it impairs my objectivity.